

To: Harry Wright
N0605150
[Sent via Email]

18 December 2025

Dear Harry,

Student Misconduct Appeal - Completion of Procedures Letter

I write in reply to your appeal together with supporting documents received by the Student Misconduct Team on 13 December 2025.

This letter confirms that the appeal process of the [Student Code of Behaviour](#) in relation to your appeal against the decision of your Student Misconduct investigation by Nottingham Trent University has been completed.

An appeal can be submitted based on the following ground(s):

- That there was a material failure by the University to follow the procedures specified in this Code including where clear reasons were not provided for the decision, or there was evidence of bias; or
- The outcome was not reasonable in all the circumstances (no reasonable decision maker, taking into account all the relevant facts, could have reached that decision); or
- New or additional evidence is available which the Accused Student was unable, for good reasons, to provide earlier in the process.

Your appeal is made on the ground "The outcome was not reasonable in all the circumstances (no reasonable decision maker, taking into account all the relevant facts, could have reached that decision)". To reach our decision, we have looked at whether the decision that the allegations were justified and that the sanction applied from Nottingham Trent University was reasonable in the circumstances and in line with regulations.

In reviewing an appeal, we examine the information and evidence provided and the investigation that took place. No supporting evidence was provided with your appeal email. Having considered this in relation to your appeal, the final decision of Nottingham Trent University is that your appeal is not upheld. The reasons are outlined below under the same headings you used for clarity:

"Lack of Supporting Evidence"

The decision was based on the balance of probabilities, considering independent staff reports and your own admissions. While CCTV or multiple witnesses are not required, the consistency and credibility of these reports, combined with your admissions, provided sufficient basis to conclude the conduct occurred.

“Acknowledged Misunderstanding, Not Misconduct”

We considered your position that your intent was friendly and humorous, and we acknowledge you stated there was no malicious intent. However, intent is not determinative under the Code. Behaviour that a reasonable person would consider likely to cause offence or distress can constitute misconduct even if unintended. The behaviour included personal remarks about ethnicity/religion, derogatory language, physically removing property without consent, and unsettling comments in the animal unit, a regulated environment. This meets the threshold for misconduct.

“Disproportionate Sanction”

In determining sanctions, we considered your admissions, denials, mitigation, the setting, as well as the distress caused and the need to prevent recurrence. The sanctions (a formal written warning and a restriction agreement to avoid contact with Staff member and the animal unit) are proportionate to the pattern of conduct. The measures do not in themselves affect your academic performance, progression or future opportunities outside of NTU; they set clear behavioural expectations, protect the NTU community, and provide you with an opportunity to demonstrate improved conduct whilst at NTU.

“Requested Outcome – Rescind Sanctions”

During the investigation you stated commitment to maintain respectful interactions and adjust your communication style, this is noted and welcomed. The restriction agreement was issued as a precaution, not as a finding of guilt, and you ultimately signed it. We note you have not breached its conditions.

However, given the substantiated conduct, it is appropriate that the current sanctions remain in place. After a review of the evidence and process, the original decision was reasonable in all the circumstances.

Conclusion

For the reasons outlined throughout this letter, the outcome and sanction applied were reasonable in all circumstances and I have not found any justification to support the original decision to being reconsidered. Therefore, you have not met the grounds for a successful appeal.

I appreciate this decision may be disappointing to you and whilst I am sympathetic to your circumstances, it must be stated that we have to apply our policies fairly and consistently to all students.

This decision is final and there is no further right of appeal within the University's procedures. Consequently, this letter confirms that the internal procedures of the University in relation to your appeal application have been completed.

I would like to reiterate that Nottingham Trent University has a range of support services available to you should you wish to access them. NTU's Health and Wellbeing pages can be accessed here: www.ntu.ac.uk/wellbeing

Support can also be accessed via the NTSU's Information & Advice Service: www.trentstudents.org/ias



Nottingham Trent
University

Nottingham Trent University subscribes to the independent scheme for the review of student complaints. If you are dissatisfied with the outcome you may be able to apply for a review of your appeal to the Office of the Independent Adjudicator for Higher Education (OIA) provided that the complaint you take to the OIA is eligible under its Rules. Further information on the OIA is available here: www.oiahe.org.uk.

Should you decide to make a complaint to the OIA, your OIA Complaint Form **must be received by the OIA** within **12 months** of the date of this letter, that is, it must be received by the OIA **on or before 18 December 2026**.

You can fill in the OIA's complaint form online or download a copy from the OIA website. <http://oiahe.org.uk/making-a-complaint-to-the-oia/oia-complaint-form.aspx>. The OIA also publishes *An Introduction to the OIA Scheme for Students*, which can be downloaded from http://oiahe.org.uk/media/42715/oia_intro_leaflet_16pp.pdf. Alternatively, you can telephone or write to the OIA for a form. **You should send a copy of this letter to the OIA with your OIA Complaint Form.**

Guidance on submitting a complaint to the OIA and the OIA Complaint Form can also be found on the OIA's website <http://www.oiahe.org.uk/making-a-complaint-to-the-oia.aspx>. You may also wish to seek advice from the Students' Union about taking your complaint to the OIA.

Yours sincerely,

A handwritten signature in black ink, appearing to be 'AC' or similar, representing Angela Constable.

Angela Constable
Academic Registry Manager, Policy & Regulations
Academic Registry